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Licensed Paralegal Practitioner for Kylee L. Keele

IN THE FOURTH JUDICIAL DISTRICT COURT FOR UTAH COUNTY

STATE OF UTAH

Court Address: 137 N. Freedom Blvd., Suite 100, Provo, Utah 84601

In the matter of the marriage of:

KYLEE LOTTIE KEELE

and

CHRISTOPHER SLATE BLACKBURN

DECREE OF DIVORCE

Civil No. 224402151

Judge Kraig Powell

Commissioner Marla Snow

2The above-captioned matter came on regularly for consideration by the Court without hearing. Kylee L. Keele ("Kylee") and Christopher Slate Blackburn ("Slate")³ entered into a Stipulation and Property Settlement Agreement (the "Agreement") to settle all issues of this divorce action. Pursuant to the terms of the Agreement, the parties consented that a Decree of Divorce could be entered with terms consistent to the terms of the Agreement. The Court considered the testimony of Kylee by way of Declaration as to jurisdiction and grounds for this divorce. The Court having reviewed the Agreement and other pleadings on file herein, and having entered its Findings of Fact and Conclusions of Law does now ORDER, ADJUDGE and DECREE as follows:

DIVORCE

1. The parties are awarded a Decree of Divorce on the grounds of irreconcilable differences, and the marriage between Kylee and Slate be and the same is hereby dissolved, and the parties are hereby free and absolutely released from the bonds of matrimony and all the obligations thereof with said Decree to become final upon signing and entry.

CHILD

2. The parties have one child born as issue of their marriage: L.S.B., born November 2021, currently age 11 months (the “Child”). No other children are expected.

3. The parties are awarded joint legal custody of the Child. Pursuant to *Utah Code Ann.* §30-3-10.1, the term joint legal custody shall mean “the sharing of the rights, privileges, duties, and powers of a parent by both parents”. The parties shall both have access to medical records, school records, court records, and any other information or records concerning the Child.

4. Kylee is awarded sole physical custody of the Child, subject to Slate’s reasonable parent-time as the parties may agree. If the parties are unable to agree, Slate’s parent-time with the minor child shall be pursuant to *Utah Code Ann.* §30-3-35.5, attached to the Agreement as Exhibit A, with Slate being awarded parent-time consistent with the parent-time for the age of the Child. Kylee’s home shall be designated as the Child’s primary residence and Kylee shall be designated as the primary caretaker. Further, if the parties cannot agree, Slate’s parent-time shall be conducted at a location of Kylee’s choosing. Slate shall inform Kylee where the parent-time will occur prior to taking his parent-time. Slate shall feed the Child breast milk during his parent-time, while the Child is still nursing. Kylee shall provide sufficient breast milk for Slate’s parent-

time. Should the child become inconsolable during his parent-time, Slate will notify Kylee and will end his parent-time early, if necessary. In addition, Slate will not have overnight parent-time with the Child until he provides written documentation from a psychotherapy evaluation clearing him to have overnight parent-time with the Child or he has been cleared by his therapist for Slate to have overnight parent-time. Slate will provide to Kylee a risk assessment report from his psychotherapy evaluation within ten (10) days of completion of the evaluation and receiving the risk assessment report. Kylee will then determine any additional work or treatment to be done by Slate in order to increase Slate's parent-time schedule and whether Slate can then begin overnight parent-time with the Child. The paternal grandparents, Richard and Paige Blackburn, will not have visitation with the Child unless Slate is physically present during the visitation, or Slate gets permission from Kylee. The parents shall not leave the Child alone with any individual who may pose a risk to the Child's health and safety, including, but not limited to, any felons, sex offenders, and known drug users. The parties shall not expose the child to illegal drug use, illegal activity, abusive relationships, inappropriate sexual relationships, any type of sexual behavior, or pornographic materials.

5. When the Child reaches age 5, unless the parties otherwise agree, Slate's parent-time will be pursuant to *Utah Code Ann.* §30-3-35, attached to the Agreement as Exhibit B.

6. The parties will follow *Utah Code Ann.* §30-3-35, for the holiday schedule as follows, with Slate designated as the non-custodial parent for purposes of following the holiday schedule only. The holiday preempts other parent-time.

Even Years	Odd Years	Holiday and Time
Mother	Father	Martin Luther King Jr. Holiday (6pm on Friday until Monday at 7pm unless the holiday extends for a lengthier period of time, which the

		parent exercising the holiday is entitled to)
Father	Mother	President's Day (6pm on Friday until Monday at 7pm unless the holiday extends for a lengthier period of time, which the parent exercising the holiday is entitled to)
Mother	Father	Spring Break (6pm on the day school lets out for the holiday until 7pm on the day before school resumes)
Father	Mother	Memorial Day (6pm on Friday until Monday at 7pm unless the holiday extends for a lengthier period of time, which the parent exercising the holiday is entitled to)
Mother	Father	July 4th (6pm on the day before the holiday until 11pm on the holiday, or no later than 6pm on the day following the holiday, at the option of the parent exercising the holiday)
Father	Mother	July 24th (6 pm on the day before the holiday until 11pm on the holiday, or no later than 6pm on the day following the holiday, at the option of the parent exercising the holiday)
Mother	Father	Labor Day (6pm on Friday until Monday at 7pm, unless the holiday extends for a lengthier period of time, which the parent exercising the holiday is entitled to)
Father	Mother	Columbus Day (6pm day before to 7pm on the day of the holiday)
Mother	Father	Fall Break Weekend (UEA weekend). (Wednesday at 6pm to Sunday at 7pm, unless the holiday extends for a lengthier period of time, to which the parent exercising the holiday is entitled)
Father	Mother	Halloween on Oct. 31 or the day Halloween is traditionally celebrated in the local community (begin after school to 9pm if on a school day or from 4pm to 9pm if not on a school day)
Mother	Father	Veteran's Day (6pm day before the holiday to 7pm on the day of the holiday)
Father	Mother	Thanksgiving (Wednesday at 7pm to Sunday at 7pm)
Mother	Father	First Half of Christmas Vacation, including Christmas Eve and Christmas Day the first half of Christmas school vacation (including Christmas eve and day) beginning the evening of the last day of school before the break and ending at 1pm on the day halfway through the holiday break if there are an odd number of days or at 7pm if there are an even number of days, so long as the entire holiday is equally divided.)
Father	Mother	Second Half of Christmas Vacation , the second half of Christmas school vacation beginning at 1pm on the day halfway through the holiday break if there are an odd number of days, or at 7pm if there are an even number of days, so long as the entire holiday is equally divided.
Mother	Father	The day before or after child's birthday on the day before or after the actual birth date (3pm until 9pm). The exercising parent may take all

		the child at his or her discretion.
Father	Mother	Child's actual birthday on birth date (3pm until 9pm). The exercising parent may take all the child at his or her discretion.
Father	Father	Father's Day 9am to 7pm on the holiday
Mother	Mother	Mother's Day 9am to 7pm on the holiday

Extended summer parent-time with each parent may be:

- (ii) up to four consecutive weeks when school is not in session at the option of the noncustodial parent, including weekends normally exercised by the noncustodial parent, but not over any holidays that are the other parent's;
- (ii) two weeks shall be uninterrupted time for each parent; and
- (iii) the remaining two weeks shall be subject to parent-time for the custodial parent for weekday parent-time but not weekends, except for a holiday to be exercised by the other parent.

7. Any vacations or travel are to be completed on full week prior to the start of the school year (when the Child is of school age.)

8. The parties will implement the objectives and goals of the following parenting plan as described below:

PARENTING PLAN

9. The parent who has the child in his or her care may make minor day-to-day decisions regarding the Child without having to consult with the other parent.

10. The parents shall be responsible for making joint decisions regarding the minor Child and shall do their best to agree on major decisions regarding the best interests of the Child, including education, medical care, dental care, religious upbringing, counseling, and other major parenting issues. The parents shall consult together regarding a major parenting issue. The parties shall do their best to agree on a solution that meets the best interest of the Child. If they reach an

impasse on other parenting issues, the parents shall attend mediation before seeking a resolution through litigation, with each parent equally sharing the mediation costs. If the parents cannot reach a decision in mediation, Kylee shall have final decision-making authority.

11. **Educational Plan:** The parents both shall have authority to make educational decisions for the Child, when she is old enough to attend school. Both parents shall have access to the Child during school and the authority to check the Child out of school. Both parties shall be listed on all school records and both parties shall have access to all school related information. The parents shall both be listed as the minor Child's parents on all school records, registrations, medical records, and any other significant documents. The school the Child will attend is based on Kylee's home residence.

12. Both parents shall be allowed full access to the Child's school records and medical records. The parents shall provide each other with the names and telephone numbers of teachers and others who work with the minor child at school, medically, or otherwise so that each party can initiate their own relationship with these professionals. The parents shall use their best efforts to communicate and share information with each other, whenever necessary, to convey information regarding the child's school work and schedule, medical and dental treatment, counseling, and other information appropriate to share with the other parent.

13. The parties will adhere to the following Advisory Guidelines of *Utah Code Ann.* § 30-3-33 as follows:

- (a) Parent-time schedules mutually agreed upon by both parents are preferable to a court-imposed solution.
- (b) The parent-time schedule shall be used to maximize the continuity and

stability of the child's life.

- (c) Special consideration shall be given by each parent to make the child available to attend family functions including funerals, weddings, family reunions, religious holidays, important ceremonies, and other significant events in the life of the child or in the life of either parent which may inadvertently conflict with the parent-time schedule.
- (d) The responsibility for the pick up, delivery, and return of the child shall be determined by the court when the parent-time order is entered, and may be changed at any time a subsequent modification is made to the parent-time order.
- (e) If the noncustodial parent will be providing transportation, the custodial parent shall have the child ready for parent-time at the time the child is to be picked up and shall be present at the custodial home or shall make reasonable alternate arrangements to receive the child at the time the child is returned.
- (f) If the custodial parent will be transporting the child, the noncustodial parent shall be at the appointed place at the time the noncustodial parent is to receive the child, and have the child ready to be picked up at the appointed time and place, or have made reasonable alternate arrangements for the custodial parent to pick up the child.
- (g) Regular school hours may not be interrupted for a school-age child for the exercise of parent-time by either parent.

- (h) The court may make alterations in the parent-time schedule to reasonably accommodate the work schedule of both parents and may increase the parent-time allowed to the noncustodial parent but may not diminish the standardized parent-time provided in Sections 30-3-35.
- (i) The court may make alterations in the parent-time schedule to reasonably accommodate the distance between the parties and the expense of exercising parent-time.
- (j) Neither parent-time nor child support is to be withheld due to either parent's failure to comply with a court-ordered parent-time schedule.
- (k) The custodial parent shall notify the noncustodial parent within 24 hours of receiving notice of all significant school, social, sports, and community functions in which the child is participating or being honored, and the noncustodial parent shall be entitled to attend and participate fully.
- (l) The noncustodial parent shall have access directly to all school reports including preschool and daycare reports and medical records and shall be notified immediately by the custodial parent in the event of a medical emergency.
- (m) Each parent shall provide the other with the parent's current address and telephone number, email address, and other virtual parent-time access information within 24 hours of any change.
- (n) Each parent shall permit and encourage, during reasonable hours, reasonable and uncensored communications with the child, in the form of

mail privileges and virtual parent-time if the equipment is reasonably available, provided that if the parties cannot agree on whether the equipment is reasonably available, the court shall decide whether the equipment for virtual parent-time is reasonably available, taking into consideration:

- (1) the best interests of the child;
 - (2) each parent's ability to handle any additional expenses for virtual parent-time; and
 - (3) any other factors the court considers material.
- (o) Parental care shall be presumed to be better care for the Child than surrogate care and the court shall encourage the parties to cooperate in allowing the noncustodial parent, if willing and able to transport the Child, to provide the child care. Child care arrangements existing during the marriage are preferred as are child care arrangements with nominal or no charge.
- (p) Each parent shall provide all surrogate care providers with the name, current address, and telephone number of the other parent and shall provide the noncustodial parent with the name, current address, and telephone number of all surrogate care providers unless the court for good cause orders otherwise.
- (q) Each parent shall be entitled to an equal division of major religious holidays celebrated by the parents, and the parent who celebrates a

religious holiday that the other parent does not celebrate shall have the right to be together with the child on the religious holiday.

14. The parents shall notify each other of any special events involving the Child such as school activities, church events, sports events, graduations, etc., so that each party shall have the option of attending the special event if possible. For any event that is not posted online, each party shall notify one another within 24 hours of receiving notice of all significant school, social, sports, and community functions in which the Child is participating or being honored, and both parties shall be entitled to attend and participate fully. The parties shall share passwords for any school website so each can access events and school work online.

15. The parties shall use a joint calendaring system or MyFamilyWizard for scheduling and notifying of appointments.

16. The parents shall notify the other parent of major injury or illness as soon as reasonably possible involving the Child.

17. The parents shall equally share the transportation for parent-time. The parent who is the receiving parent shall provide the transportation unless otherwise mutually agreed upon.

18. The parties shall communicate and advise the other regarding where the Child is left and the identity of any surrogate care providers.

19. The parents shall inform the other parent regarding logistical details of extended vacations including itinerary and contact information. The vacations may not conflict with the other parent's holiday parent-time.

20. The parents shall immediately notify the other parent of any change of address, email address, cell phone number and telephone number.

21. The parties shall discuss all parenting concerns by text or email and shall not use their Child to deliver messages. The parties shall use phone or text contact for emergencies or changes on the day of the exchange. The parties shall be civil with one another.

22. **Transportation:** If the parties are not able to agree and the Child is not in school for a parent-time exchange, the parent-time exchange shall occur at a neutral location, approximately equal distance between the parent's homes. Accordingly, if a party is more than thirty (30) minutes late in picking up the Child without reasonable advance notice, the other party's duty to wait for the arrival of the parent picking up the Child shall be deemed to have been fulfilled.

23. If due to emergency circumstances, a parent will be late or is unable to be present to pick-up or deliver the Child, then that parent shall notify the other as soon as possible to advise them and make appropriate alternate arrangements.

TRAVEL WITH THE CHILD

24. Pursuant to Utah Code Ann § 30-3-36(2), for emergency purposes, whenever the Child travels with either party, whether in-state or out-of-state, all of the following shall be provided to the other parent: (i) an itinerary of travel dates; (ii) destinations; (iii) places where the Child or traveling parent can be reached; and (iv) the name and telephone number of an available third person who would be knowledgeable of the Child's location. Each party will notify the other party 14 days in advance of all upcoming planned travel. That parent will give the other parent the travel schedule, locations and phone numbers at least 7 days in advance.

25. Travel arrangements shall be discussed and verified by the parties by shared calendar and email and that time cannot interfere with any previously scheduled travel times with the other parent.

26. Any vacations or travel arrangements are to be completed one full week prior to the start of the school year.

27. **Virtual Parent-Time:** Both parties shall be entitled to daily, reasonable, uninterrupted, and unmonitored/uncensored telephone/videophone contact with the Child at reasonable hours (unless otherwise agreed between the Parties in writing, this shall occur between the hours of 8:00 a.m. and 8:30 p.m.) and for reasonable duration (which shall be based upon the Child's abilities, interests, schedule, and willingness to participate) while the other parent is exercising parent-time with the Child. Similarly, each parent shall enjoy unmonitored/uncensored mail and e-mail contact with the Child, when age appropriate. Neither party shall restrict the Child's telephone, text or videophone contact with the other parent when the Child is in their care.

28. **Preferred Care:** Inasmuch as parental care is better care for the Child than surrogate care and the parties desire to encourage and facilitate the provision of such care, each party shall have the right to care for the Child any time the other party reasonably expects to be unable to directly care for the Child for any time four (4) or more. The party providing preferred care for the Child shall provide all transportation associated with his/her provision of preferred care. This provision shall not be used to prevent the Child from spending occasional overnights with friends, provided the non-arranging parent is provided with information regarding where the Child is spending the night and with whom. If a parent re-marries, each parent will be allowed to

meet the new spouse and to determine if step-parent surrogate care of the Child can be addressed and the parties can work towards any arrangements or any agreement at that time, following the meeting and introductions.

29. **Precedence of Parent-Time:** Subject to and as prescribed by Utah Code §§ 30-3-35, Holiday parent-time takes priority over standard parent-time—unless otherwise agreed in writing, neither party shall exercise standard parent-time during the other parent’s Holiday parent-time. Holiday parent-time also takes priority over Extended parent-time—unless otherwise agreed in writing, neither party shall exercise Extended parent-time during the other parent’s Holiday parent-time. Extended parent-time takes priority over standard parent-time—unless otherwise agreed in writing, neither party shall exercise standard parent-time during the other parent’s Extended parent-time. Actual Holiday parent-time takes priority over Birthday parent-time—unless otherwise agreed in writing, if the Child’s birthday falls on a holiday the parent exercising Holiday parent-time shall also be entitled to exercise Birthday parent-time with the Child and the other parent shall be entitled to exercise his/her Birthday parent-time on the day prior or the day following the Holiday as otherwise prescribed herein in relation to Birthday parent-time.

30. **Notice to Third Parties:** The parties shall inform all educational, school, medical, dental, orthodontic, optical, psychological, and other care providers that they have joint legal custody and that such care providers shall use their best efforts to ensure that the parties are jointly involved and consulted with in making decisions regarding the Child. The parties expressly acknowledge that such efforts may, in the event of an emergency, necessarily be limited. Each parent shall make emergency decisions affecting the health or safety of the minor

Child while the minor Child is with the parent. Each parent will notify the other as soon as possible of the emergency involving the Child.

31. **Deviation from Parent-Time Schedule, etc.:** The parties may alter their parent-time schedule as they agree in writing, with a minimum of one-week notice to the other. Such changes are preferable to externally imposed solutions.

32. If the Child is ever in need to attend therapy, with each party paying one-half of the out-of-pocket costs of the Child's therapy. Both parties shall have equal access to the therapists and the records. The parties shall also share responsibility to take the Child to the appointments, so that both are seen as supportive of the Child's work with their therapists. Both parties shall support and abide by all recommendations of the Child's therapist.

33. The parties shall:

- (a) Respect each other's need for personal space and independence;
- (b) Affirmatively support each other as parents and hold the other in high esteem as a parent in their respective conversations with the Child;
- (c) Refrain from directly or indirectly using the Child as a means of communicating with each other or otherwise placing the Child "in the middle" regarding issues that arise under or relate in any way to this parenting plan, the Child, or the parties' divorce;
- (d) The parties shall not disparage one another and/or allow one another to be disparaged to the Child or in the Child's presence, attempt to affect, influence, or otherwise manipulate the Child's perception of their relationship with the other parent; and discuss with, or in the presence of the Child or otherwise indirectly or indirectly expose the Child to the

allegations, circumstances, and/or facts in this divorce proceeding or any other issues giving rise or otherwise underlying the parties' divorce.

34. When the Child is of school age and shall she be involved in extracurricular activities, the parties shall support the Child in these activities and any additional activities the Child participates in in the future. Each party shall pay one-half of all costs associated with the activities, as well as any other activities the parties may agree upon in advance, in writing. Both parties shall have access to games, meets, tournaments, coaches, schedules, tutors, and access to all information, emails, coaches, etc. on these activities. The parties shall not schedule the Child's extracurricular activities on the other parent's parent-time, unless the parties agree. A party incurring the extracurricular activity out-of-pocket costs shall submit to the other party verification of the incurred expense, such as a receipt or an invoice, within thirty (30) days of payment or receiving the same and shall be reimbursed by the other party within thirty (30) days of receiving the verification of incurred expenses. A party who incurs an expense for the Child's extracurricular activating without receiving prior written consent from the other party shall be solely responsible for that expense. If it is more practicable, the parties can set up his or her individual payment schedules and accounts with the provider for the Child's extracurricular activity directly to pay his or her one-half portion of the extracurricular activity, rather than reimburse the other parent for the expense.

35. **School Fees.** When the Child is of school age, each party is ordered to assume and be responsible for one-half of any out-of-pocket school expenses (i.e., lunches, school photos, registration, books, required supplies, lab fees, etc.) incurred during the time leading up to and including high school, including private tuition. The party incurring the out-of-pocket school

expense shall submit to the other party an invoice, bill, receipt or other verification of the incurred expense within thirty (30) days of payment or receiving the same and shall be reimbursed by the other party within thirty (30) days of receipt of those school expense invoices, bills, receipts, and/or verification. If it is more practicable, the parties can set up his or her own individual payment schedules and accounts with the Child's school for the Child's school expense directly to pay his or her one-half portion of the Child's school expense, rather than reimburse the other parent for the expense.

36. **Relocation:** If either parent moves more than 150 miles, the parents will be bound by the 60 day notice requirements of U.C.A. Section 30-3-37. If a party plans to relocate more than 150 miles from the residence of the non-relocating party, the relocating party shall provide the non-relocating party at least 60 days advance notice of the relocation. If the parties are unable to agree to a modification of custody and parent-time, the parties shall mediate the issue. The parties shall equally pay the fees of the mediator. If the parties are unable to resolve the issue in mediation, either party may file a petition with the court. Neither parent anticipates a move at this time.

37. **Child Care.** The parties shall equally pay for all work-related child care for the benefit of the Child. A party incurring the child care expense shall submit to the other party verification of the incurred expense, such as a receipt or an invoice, within thirty (30) days of payment or receiving the same and shall be reimbursed by the other party within thirty (30) days of receiving the verification of incurred expenses. If it is more practicable, the parties can set up his or her own individual own payment schedules and accounts with the child care provider

directly to pay his or her one-half portion of the work-related child care expense, rather than reimburse the other parent for the expense.

Miscellaneous Provisions.

38. Neither party shall have overnight guests of the opposite sex when a child is in their care, until they are married to that person.

39. The parties shall not introduce the Child to a romantic interest unless and until they are in a committed relationship. The parties can jointly work with any therapists or professionals, including those of the Child, if applicable, on how to jointly introduce a romantic interest to the Child to minimize any possible negative effects to the Child.

40. The parties will:

- a. Provide age-appropriate help to the Child to communicate with the other parent.
- b. Give the Child privacy during their communication with the other parent. The parents will not interfere with communication between the Child and the other parent.
- c. Parents and child may communicate with each other whenever the Child chooses.

41. The parties may alter their parent-time schedule as they agree in writing.

Child Support

42. Kylee earns a gross income of \$3,666 per month, based on her earned income to the equivalent of one-full-time, 40 hour job, for child support income.

43. Slate earns a gross income of \$2,500 per month based on his earned income to the equivalent of one-full time, 40 hour job, for child support income.

44. Pursuant to Utah Code Ann. §78B-12-205, Slate is ordered to pay to Kylee child support in the amount of \$306 per month beginning November 2022.

45. Slate is currently in school to obtain his Commercial Driver's License (CDL). When Slate completes this school/training and obtains his CDL and is working full-time, child support shall automatically be recalculated based on the parties' then current incomes and utilizing a Sole Custody Child Support Obligation Worksheet under the Utah Child Support Uniform Guidelines. The parties shall enter into a Stipulation and Order updating Slate's child support obligation, without having to file other documentation with the Court, including a Petition to Modify, requiring further Court assistance to enforce Slate's increased income for child support purposes.

46. Pursuant to UCA §78B-12-112, child support is due on the 1st day of each month. Installment payments may be made with half paid on the 5th and the other half paid on the 20th of each month. Slate's child support payments to Kylee shall be made by direct deposit or electronic funds transfer.

47. Child support shall continue until (1) the minor child reaches the age of eighteen (18) or graduates from high school during their normal and expected graduating class, whichever occurs later, or (2) if the child dies, marries, becomes a member of the armed forces of the United States, or is otherwise emancipated.

48. Pursuant to UCA §78B-12-210(8), 78B-12-210(9) and 78B-12-210(10), any child support may be adjusted by motion when the most recent Child Support Order is older than three

(3) years and by petition when the most recent Child Support Order is less than three (3) years old.

49. Automatic income withholding of Slate's child support obligation shall not be implemented at the present time. In the event Slate becomes more than 30 days delinquent in the payment of his child support obligation, automatic income withholding may be implemented through the Office of Recovery Services ("ORS"). Slate shall pay for all fees charged and/or associated with the collection of his child support payments through ORS.

50. **Medical/Dental Expenses:** The parties shall provide health care coverage for the minor Child pursuant to U.C.A. § 78B-12-212. The party who can obtain the best coverage at the most reasonable cost shall obtain insurance for the medical expenses of the minor Child in accordance with U.C.A. Section 78B-12-212. Kylee is currently providing medical and dental insurance coverage for the benefit of the minor child. Kylee's health insurance shall be considered the primary health insurance coverage.

a. Each parent shall share equally the out-of-pocket costs of the premium actually paid by a parent for the child's portion of insurance. The child's portion of the premium is a per capita share of the premium actually paid. The premium expenses for the child shall be calculated by dividing the premium amount by the number of persons covered under the policy and multiplying the result by the number of children in the instant case. This amount shall be automatically deducted from or added to the child support paid or owed.

b. Each parent shall share equally all reasonable and necessary uninsured expenses for the minor Child, including, but not limited to, one-half of all uninsured

expenses for medical, dental, surgery, deductibles and co-payments, orthodontic care, counseling, psychological or psychiatric care, hospitalization, physical therapy, ophthalmology and optometry, prescriptions, broken limbs, and continuing illnesses or allergies such as diabetes or asthma, as well as other reasonable and necessary uninsured medical and dental expenses incurred for the dependent child and actually paid by the parents.

c. The parent who incurs medical and dental expenses shall provide written verification of the cost and payment of medical and dental expenses to the other parent within 30 days of payment. The other parent shall remit payment within 30 days of receipt of the verification. If neither party is able to secure said insurance at a reasonable cost, each party shall be responsible for the payment of one-half of all reasonable and necessary medical and dental expenses for the minor child as indicated.

d. If, at any point in time, the dependent child is covered by the health, hospital, or dental insurance plans of both parents, the health, hospital, or dental insurance plan of Kylee shall be primary coverage for the dependent child and the health, hospital, or dental insurance plan of Slate shall be secondary coverage for the dependent child. If a parent remarries and his or her dependent child is not covered by that parent's health, hospital, or dental insurance plan but is covered by a step-parent's plan, the health, hospital, or dental insurance plan of the step-parent shall be treated as if it is the plan of the remarried parent and shall retain the same designation as the primary or secondary plan of the dependent child.

e. If the parties have double coverage for insurance, each party shall pay

their own insurance policy premium.

51. The parent ordered to maintain insurance shall provide verification of coverage to the other parent, or to the Office of Recovery Services under Title IV of the Social Security Act, upon initial enrollment of the dependent child, and thereafter on or before January 2 of each calendar year. The parent shall notify the other parent, or the Office of Recovery Services, of any change of insurance carrier, premium, or benefits within 30 calendar days of the date that parent first knew or should have known of the change.

ALIMONY AND RELATED PROVISIONS

52. In lieu of monthly alimony, Slate is ordered to pay Kylee a lump sum payment of \$90,828 (which is calculated by Kylee's monthly expenses of \$4,694, less her net income of \$2,706 and monthly child support received in the amount of \$306, leaving a deficit of \$1,682 per month) for 4.5 years (the length of the marriage), as Slate's alimony obligation. This lump sum payment will be in the form of Kylee receiving additional equity in the marital residence. Kylee is awarded additional equity in the marital residence as referenced in paragraph 65, below. Thereafter each party irrevocably waives any other claim to past, present or future alimony under any condition or circumstance.

53. Each party shall be responsible to maintain his or her own medical, dental and vision insurance coverage. Each shall be responsible for his or her own uninsured medical, dental and vision costs.

PERSONAL PROPERTY DISTRIBUTION

54. Each party is awarded his or her clothing, memorabilia, and personal effects relative to any property that has not already been turned over to the other party.

55. Each party is awarded as his or her separate property, property acquired by gift, devise or inheritance, or as a gift from the other party during the marriage. Each party is awarded his or her own wedding ring.

56. The parties shall attempt to equitably divide their furniture and furnishings. If the parties are unable to do so, the parties shall participate in mediation. If the parties are unable to do so in mediation, the mediator shall act as an arbitrator and make the final decision. Each party shall pay for one-half of the fees of the mediator/arbitrator.

57. If the parties later find a marital asset not mentioned in the agreement or inadvertently forgotten about, the parties shall each receive one-half of the value or amount of any asset not provided for in the Agreement.

BANK ACCOUNTS

58. Each party is awarded his or her own bank account(s) in his or her own name.

Kylee is awarded her Wells Fargo, checking account ending in xxx-1528 and Wells Fargo, savings account ending in xxx-8833.

Slate is awarded his Utah Community Credit Union, savings accounts ending in xxx-4910 and xxx-6040 and his Mountain America, checking account ending in xxx-0005 and Mountain America, savings account ending in xxx-0001.

59. The parties have a joint account at Utah Community Credit Union, checking account ending in xxx-4920. The funds in this account are awarded to Slate and the account shall immediately be closed.

60. Kylee is awarded her Health Savings Account through her employer, free and clear, without further claim from Slate.

DEBTS

61. During their marriage, the parties incurred certain debts and obligation. Each party shall pay the debts and obligations incurred in his or her own name. Kylee shall be solely responsible for the mortgage on the marital residence, without further claim from Slate, as indicated in paragraph 65, below.

VEHICLES

62. Kylee is awarded the 2021 Kia Seltos, free and clear of any claim of Slate, subject to the debts and obligations associated with the vehicle. Kylee shall refinance the loan on the Kia Seltos to remove Slate's name from that debt and liability within 90 days of entry of the Decree of Divorce. Slate is awarded the 2000 Kia Sedan, free and clear of any claim of Kylee, subject to any debts or obligations associated with that vehicle.

63. Each party shall be responsible for the debts, registration, taxes and insurance on the vehicle he or she is awarded.

64. If the parties later find a joint marital debt or obligation not mentioned in the Agreement or inadvertently forgotten about, the parties shall equally assume and pay any joint marital debt or obligations not provided for in the Agreement.

REAL PROPERTY

65. During their marriage, the parties acquired a home and real property located at 9593 North 4500 West, Cedar Hills, Utah 84062 (the "marital residence"). which is awarded as follows:

- a. The marital residence is currently valued at \$460,000, with a current outstanding principal mortgage balance of \$351,590 as of September 1, 2022,

thus resulting in equity in the marital residence in the amount of \$108,410. As referenced in paragraph 52 above, in lieu of monthly alimony, Slate is ordered to pay Kylee a lump sum payment of \$90,828 from his share of the equity in the marital residence. Slate's portion of the equity in the home as of September 1, 2022 is \$17,582.

b. Kylee is awarded all right, title and interest in the marital residence and shall assume and pay all debt associated with the home, holding Slate harmless therefrom.

c. For the time being, the marital residence will remain in both parties' names. The parties will work together so Kylee and the minor child can continue to reside in the marital residence as long as possible. The parties will work together and come to an agreement when they will either sell the marital residence or Kylee is able to refinance the marital residence solely into her name and removing Slate from the mortgage and title of the marital residence. If the parties cannot agree, they shall attend mediation to reach a mutually agreeable decision.

d. When the time comes, if Kylee is able to refinance the marital residence solely into her name, Slate shall quit claim his interest in the marital home to Kylee simultaneously with receiving his portion of the equity in the amount of \$17,582 and his name being removed from the mortgage.

RETIREMENT ACCOUNTS

66. During the course of the marriage, the parties acquired retirement accounts. Each party is awarded the retirement account or pension currently titled in his or her name, free and clear of any claim from the other.

STOCK ACCOUNTS

67. During the course of the marriage, the parties acquired stock accounts. Each party is awarded the stocks accounts in his or her name, free and clear of any claim from the other.

LIFE INSURANCE

68. If at any time, Slate is eligible and able to obtain life insurance on his life, either through his employment or through a private company, Slate is ordered to designate Kylee as a 100% beneficiary on that life insurance policy, so long as he has a child support obligation to Kylee.

DIVORCE CLASSES

70. Slate has taken the divorce orientation and divorce education classes for parents.

TAX PROVISIONS

71. In the event any income tax return of the parties filed on a married filing joint basis is audited, the parties shall be equally liable for any tax, penalty or interest assessed or shall be equally entitled to any refund.

72. Kylee shall be entitled to claim as an itemized deduction any mortgage interest or real property taxes paid after December 31, 2021, relative to the home and real property.

Dependency Exemption/Tax Credit:

73. The parties shall share the dependency exemption/tax credit for the minor Child as follows:

a. The parties shall alternate the dependency exemption/tax credit for the minor child. Slate shall be entitled to claim the minor child as a dependency exemption/tax credit for odd-numbered tax years, and Kylee shall claim the minor child as a dependency exemption/tax credit for even-numbered tax years.

b. Slate shall be entitled to claim the dependency exemption/tax credits indicated herein as long as he is current on his child support obligation by December 31st of any tax year.

MISCELLANEOUS PROVISIONS

74. The parties shall execute such documents as may be necessary to transfer the property as awarded by the Court to the party entitled thereto within sixty (60) days of entry of the Decree of Divorce.

75. **Minor Child's Name Change.** The parties will work together to have the minor child's last name changed to Keele-Blackburn. The parties will sign any and all documentation, including but not limited to forms and the minor child's Amended Birth Certificate, if necessary, and any documents necessary through the Health Department, to effectuate this change to the minor child's last name within ten (10) days of signing the Agreement.

76. Each party shall pay his or her own legal fees and costs incurred in this action.

MUTUAL RESTRAINING ORDERS

77. A restraining order shall be entered enjoining each party from harassing, annoying or bothering the other party, or from contacting any member of the other person's family or other party's friends, or from committing any domestic violence or abuse against the other party. This includes, but is not limited to, speaking derogatorily about the other parent in the presence of the

Child; speaking to the Child about the issues in this case; attempting to influence the Child's preferences regarding custody or parent-time; or attempting to diminish the love and affection of the Child for the other parent.

78. Identity. Neither party shall use the other party's likeness, picture, name, identification, or credit of the other party to obtain credit, open an account for any service, or obtain any other service, including inappropriate postings and photos to their social media accounts.

79. Both parties shall be prohibited from doing or saying anything to the detriment, harm, or injury of the other party, including but not limited to speaking derogatorily about the other party.

80. Both parties shall be mutually restrained from inducing or allowing a third party to do what they themselves are prohibited from doing under these restraining order paragraphs and shall have the affirmative duty to use his or her best efforts to prevent third parties from committing such violations.

81. A restraining order shall be entered enjoining each party from accessing, interfering with or changing the other party's phone, email account, or social media accounts.

82. Right to Consult with an Attorney or Licensed Paralegal Practitioner. Slate has the right to consult with an attorney or licensed paralegal practitioner with respect to the settlement of this matter. He does not wish to have the attorney or licensed paralegal practitioner represent him further and believes that this is a fair and equitable settlement, given the circumstances of the parties and the duration of the marriage. Slate recognizes that Amber Alleman represents Kylee only and that Amber Alleman cannot offer Slate legal advice. Slate

enters the Agreement voluntarily and without duress or coercion. Kylee and Slate have negotiated the Agreement between themselves and any ambiguity shall not be construed against either party.

83. Disclosure. The parties acknowledge that each has fully and completely disclosed to the other all assets and debts of every kind and nature known to him or her in which he or she may have an interest in whatsoever, that the Agreement encompasses and deals with all such assets and liabilities, and that there are no assets or liabilities, contingent or otherwise, that have not been disclosed in connection with the final settlement of this matter.

84. In the event of a dispute between the parties as to the interpretation of a term of the Agreement, the parties shall mediate the issue before either party may initiate court action. The parties shall equally pay the mediator's fees.

****ENTERED BY THE COURT ON THE DATE AND AS INDICATED BY
THE COURT'S SEAL AT THE TOP OF THE FIRST PAGE****

APPROVED this 1st of November, 2022.

/s/ CHRISTOPHER SLATE BLACKBURN
(signed by Amber Alleman with permission of
CHRISTOPHER SLATE BLACKBURN by email)
CHRISTOPHER SLATE BLACKBURN
Pro Se

CERTIFICATE OF SERVICE

I hereby certify that, upon information and belief, all non-public information has been omitted or redacted from this public record. I also hereby certify that a true and correct copy of the foregoing unsigned **Decree of Divorce** was served pursuant to Rules 5(b) and 7(f) of the U.R.C.P. via electronic mail on October 28, 2022, to the following:

Christopher Slate Blackburn
slateblckbrn@gmail.com

*/s/ Amber Alleman*_____

Notice: Pursuant to Rule 7(j)(5)(C) of the Utah Rules of Civil Procedure, notice of objection as to the form of the order of the court shall be filed within seven days after service.